

Smt. Rani Agrawal v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 January 2019 · WRIT - C No. 27905 of 2008 · **Writ disposed; representation to authority/Consumer Forum to be decided in four months, limitation not to be raised if filed in time.**

HEADNOTE

Saw mill consumers challenged DVVNL demands for minimum consumption charges for October 2006–August 2007, when supply stood disconnected under an Apex Court order. The licensee invoked clause 4.37 of the Electricity Supply Code, 2005 on the footing that the connections were only temporarily disconnected. The Court held that the controversy raised disputed questions of fact not triable in writ, and disposed of the petition directing a representation to the Appropriate Authority/Consumer Forum to be decided by a reasoned order within four months, without examining limitation if moved in time.

FACTUAL SUMMARY

The petitioners, saw mill owners, challenged Dakshinanchal Vidyut Vitran Nigam orders dated 31 December 2007 and 28 April 2008 demanding minimum consumption charges for October 2006 to August 2007. Their electricity supply had been disconnected from 23 September 2006 pursuant to an Apex Court order, and they said no energy was supplied in that period. The licensee contended that the connections were not permanently disconnected, so the temporary disconnection stood at par and clause 4.37 of the Electricity Supply Code, 2005 made minimum charges payable.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.37

minimum-charges-temporary-disconnection

HOLDING

Whether minimum charges under clause 4.37 are payable for a period of Apex Court-ordered disconnection, when the connection was not permanently disconnected and no energy was supplied, raises disputed questions of fact that cannot be decided in writ. The petitioners may move the Appropriate Authority/Consumer Forum within two weeks; that authority shall decide the representation by a reasoned speaking order within four months and, if filed in time, without examining limitation. ¶ 1

FLAG Respondent cited cl. 4.37 as the source of minimum charges on temporary (non-permanent) disconnection; the Court did not examine or apply the clause.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE MAY RECOVER MINIMUM CONSUMPTION CHARGES UNDER CLAUSE 4.37 FOR OCTOBER 2006–AUGUST 2007 WHEN SUPPLY WAS DISCONNECTED PURSUANT TO AN APEX COURT ORDER AND NO ENERGY WAS SUPPLIED.

Writ declined on disputed questions of fact; relegated to Appropriate Authority/Consumer Forum. ¶ 1